

Tentative Rulings for July 29, 2026 Department M302

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M302 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT IN-PERSON OR VIA ZOOM VIDEO WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 672 7660**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2507293	WASSGREN VS WASSGREN	MOTION FOR TEMPORARY STATUS-QUO

Tentative Ruling: DENY WITHOUT PREJUDICE

The Complaint in this matter was filed on July 1, 2025. Plaintiffs' Complaint alleges 6 causes of action for (1) waste, private nuisance; (2) negligence and negligence per se; (3) harassment; (4) monetary abuse; (5) personal injury; (6) infliction of emotional [distress].

Briefly, Plaintiffs allege that they co-own 81.25 % of the undivided property at issue, and Defendant owns 18.75 %. The property consists of one main home and an ADU, both appurtenant to the co-owned property, located on the lower portion of the 17.31 acres where the shared water well and electric panel, and power pole are. The main entrance is shared and used by all, including Fedex, UPS, and Amazon deliveries. Defendant has allegedly been unwarrantedly staying in the co-owned main home, the co-owned ADU remains unoccupied, and contains Defendant's waste. Defendant is claiming sole ownership of both the main home and the ADU. Apparently, Defendant has turned off or threatened to turn off Plaintiffs' utilities, and on more than one occasion locked Plaintiffs out of the property. The Sheriffs have made several trips to the property, resulting in issuance of a ticket to Defendant.¹

The prayer, in part, asks for:

- For a preliminary and permanent injunction enjoining Defendants to refrain from blocking any pathways, easements and roads, whether recorded or not. As well as refraining from blocking, the front entrance with any form of a gate, fence, or other obstacles. (Noting that the road and easement at the main entrance have been opened for use freely, for over 40 years with NO GATE). Noting also there are two other gates rarely used, that may be kept closed as Used mainly for fire and emergency use. Also, refraining Defendant from bringing anymore debris and waste(junk) to this shared property, referenced in this complaint.
- Also, Defendant to refrain from yelling or talking in ANY negative manner to the Defendants, (Noting the foul threatening language of Defendants text messages). Including stating that Plaintiffs should not be in what defendant calls " his areas" (noting these areas referenced have been used by" All" owners, residents, guests, delivery companies, etc. for many years) That Defendant also Refrain from occupying the main home, AT ALL, including the front porch area under the awnings. Leaving this home as it is, with no destruction, (as defendant threatened to start dismantling the homes if he can't have them himself as sole owner). (See texts stating so. Exhibit 21.)

¹ The Complaint and other documents written by Plaintiffs are difficult to read as they are not clear and concise.

Defendant has filed a motion for temporary status- quo, property non- interference, reduced- contact, access- route, utility- preservation, and no- negative- contact orders pending trial. In a confusing way, Defendant asks the Court to issue temporary, mutual, practical rules that reduce direct- contact conflict, preserve access, prevent self-help property interference, preserve utilities and infrastructure, protect family members, visitors, helpers, and contractors, reduce negative contact, and reduce unnecessary agency escalation pending trial or further order of the Court. This motion is made pursuant to CCP § 128 and CCP §§ 525 through 534, including section 526 and related provisions, although the Ps & As do not fully brief the issues.

As written, the motion asks for various forms of relief under the following headings:

- REDUCED CONTACT AND DIRECT- FRONTAGE AVOIDANCE ARE NEEDED.
- NO- SELF- HELP PROPERTY INTERFERENCE ORDERS ARE NEEDED
- ROAD MAINTENANCE AND DUST- CONTROL LANGUAGE MUST BE NARROW
- MONITORING, RECORDING, AND FAMILY IMPACT
- AGENCY ESCALATION LANGUAGE MUST PRESERVE EMERGENCY CALLS
- UTILITIES AND INFRASTRUCTURE SHOULD BE PRESERVED PENDING TRIAL

The opposition is written in a similar fashion, with no citation to authority, contending that the motion is a falsehood with confusing evidence that makes no sense.

Procedural Issues

While not an exhaustive list, the format of the motion does not comply with the California Rules of Court:

CRC rule 2.104, 2.105: Font size must be at least 12-point type with typeface essentially equivalent to Courier, Times New Roman or Arial. Here, the font size in moving paper appears to be small than 12-point type.

CRC rule 2.108: Lines on each page shall be numbered consecutively and shall be *either* double-spaced or with 1 1/2 space between lines. Here, the motion is single-spaced.

CRC rule 3.113(b): The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced. Although moving Defendant is in pro per, he must still show compliance with the Rules. He does not provide a discussion on the law he is relying on for relief, and how the facts of this matter fall within the law. Instead, he cites CCP 525 through 534, including section 526 and related provisions with no discussion, leaving it up to the Court to piece together.

Merits

To the extent Defendant is seeking a preliminary injunction, to prevail on a motion for preliminary injunction, the moving party must show a likelihood of success on the merits and that the balance of hardships weighs in favor of granting the injunction. This

standard is articulated in *O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1463. The showing must be supported by competent evidence establishing a factual basis for relief, as emphasized in *Ancora-Citronella Corp. v. Green* (1974) 41 Cal.App.3d 146, 150. Declarations submitted in support of such motions must be made under personal knowledge to be admissible, pursuant to Evidence Code section 702.

Defendant makes no such showing. It is unclear what the photos submitted as evidence in this motion are introduced to show. The declarations of Defendant include long recitations of recent events. Perhaps the best way of handling this pro per v. pro per situation, AS THE Court is thinking, is to discuss these matters in open court, but as is, the moving papers are not formatted to provide for relief.

2.

CASE #	CASE NAME	HEARING NAME
CVME2508525	DOE A.G. VS COUNTY OF ORANGE	MOTION TO QUASH PLAINTIFF'S DOCUMENT SUBPOENA TO THE CUSTODIAN OF RECORDS FOR THE SHERIFF'S DEPARTMENT

Tentative Ruling Motion to quash – District Attorney's Office Records: QUALIFIED DENIED with "meet and confer" ordered.

The motion to quash is DENIED for reason that the categories of documents requested by the subpoena are reasonably particularized and may be relevant or reasonably calculated to lead to admissible evidence. Discovery should be limited to matters which are not privileged and not within the scope of third-party right to privacy (Code Civ. Proc., § 2017.010) and, therefore, production should be subject to a joint stipulation containing a "first look" provision allowing the County's counsel to review and redact information which may disclose the identity of minor victims and to prepare a privilege log describing the redactions. The parties are ordered to meet and confer on entering a joint stipulation before Defendant may issue and serve amended subpoenas.

Motion to quash – Sheriff's Department Records: QUALIFIED DENIED with "meet and confer" ordered.

The motion to quash is DENIED for reason that the categories of documents requested by the subpoena are reasonably particularized and may be relevant or reasonably calculated to lead to admissible evidence. Discovery is be limited to matters which are not privileged and not within the scope of third-party right to privacy (Code Civ. Proc., § 2017.010) and, therefore, production should be subject to a joint stipulation containing a "first look" provision allowing the County's counsel to review and redact information which may disclose the identity of minor victims and to prepare a privilege log describing the redactions. The parties are ordered to meet and confer on entering a joint stipulation before Defendant may issue and serve amended subpoenas.

Defendant County of Orange ("Orange") moves for the second time to resolve discovery issues relating to Plaintiff's Subpoenas Duces Tecum served upon two separate governmental agencies: the Orange County District Attorney's Office and the Sheriff's

Department. The subpoenas seek to obtain criminal investigative records pertaining to Beccy Hasselbarth, another defendant in this case who was the alleged perpetrator of childhood sexual assault committed against Plaintiff. The County requests that the Court grant an order quashing the subpoenas precluding the production of the subpoenaed records.

Plaintiff sued the County of Orange for childhood sexual abuse that occurred in 2001 through 2002 when Plaintiff was in custody of a juvenile detention facility, the Los Pinos Conservation Camp, operated by the County's juvenile justice system. Plaintiff alleges, among other things, that the County failed its duty to properly supervise Plaintiff, who was then a minor, and to adequately investigate, hire, train, supervise and oversee the alleged perpetrator (Beccy Hasselbarth) who was at the time employed by the County as a juvenile corrections counselor/supervisor. Plaintiff also alleges that the County failed its mandatory duty to report suspected child abuse to law enforcement as required by the Child Abuse and Neglect Reporting Act ("CANRA", Pen. Code, § 11164 et seq.). On August 05, 2025, Plaintiff filed his operative First Amended Complaint ("FAC"), alleging the following three causes of action against the County: 3rd cause of action (negligent hiring, supervision, and retention of unfit employee, Gov.Code, § 815.2 and 820); 4th cause of action (failure to report suspected child abuse, Gov. Code, §§ 815.2, 815.6, and 820); and 5th cause of action (negligent supervision of a minor, Gov. Code, §§ 815.2 and 820)

The two instant motions were filed in response to Plaintiff's second attempt to subpoena documents from the Orange County District Attorney's Office and the Sheriff's Department. In his first attempt, on January 22, 2026, Plaintiff issued a business records subpoena to the Orange County District Attorney's Office, seeking generally: "Any and all DOCUMENTS, investigative reports, police reports, supplemental reports, witness statements, criminal case records, pleadings, and evidence relating to BECCY HASSELBARTH (DOB 10/12/1971)." (Declaration of Frances M. Clark ISO Motion re District Attorney Records ["Clark Decl. - DA"], Ex A.) Also on January 22, 2026, Plaintiff issued a business records subpoena to the Orange County Sheriff's Department, seeking generally "Any and all DOCUMENTS in the criminal case investigative file regarding the investigation into BECCY HARSELBARTH (DOB: 10/12/1971), sexually assaulting and molesting minors including but not limited to all recorded statements, all recorded interviews, all video interviews, all videos (explicit videos may be redacted to remove body parts), photographs, all statements, all witness statements, all text messages, all social media messages, all text messages, all electronics evidence, all photos (graphic photos may be redacted), all evidence, audio recordings, all police reports and supplemental police reports." (Declaration of Frances M. Clark ISO Motion re District Attorney Records [Clark Decl. – Sheriff"], Ex A.)

The County moved to quash both subpoenas, and, on April 07, 2026, the Court granted the motions without prejudice, noting that the categories of documents requested by the subpoenas, as framed, were overbroad as to time and scope and not reasonably particularized for each category of documents being requested, which may include records that are privilege and fall within the scope of third-party right to privacy. The Court further instructed that Plaintiff, in seeking the records, should do so by modifying the subpoenas in a manner to seek only such records which are reasonably particularized and within the scope of permissible discovery. (See Minute Orders dated April 07, 2026.)

Subsequently, on May 15, 2026, Plaintiff issued a business records subpoena to the Orange County District Attorney's Office seeking records limited only to the criminal prosecution of Hasselbarth between January 1, 2005, and December 31, 2008, concerning sexual conduct involving minors at the Los Pinos Conservation Camp:

All charging documents, amended charging documents, plea forms, sentencing records, minute orders, probation terms, disposition records, police reports, supplemental reports, investigative reports, witness statements, interview summaries, recorded interviews, audio recordings, video recordings, photographs, complaints, referrals, evidence logs, and other factual records created, maintained, obtained, or received by the Orange County District Attorney's Office between January 1, 2005 and December 31, 2008 concerning BECCY HASSELBARTH (DOB: 10/12/1971), including records relating to the criminal prosecution of BECCY HASSELBARTH in Orange County Superior Court Case No. 06SF0883, and allegations of sexual abuse, sexual misconduct, unlawful sexual conduct, grooming, inappropriate relationships, boundary violations, or other inappropriate sexual conduct involving minors at Los Pinos Conservation Camp

The subpoena explicitly excluded any privileged materials to be described in a privilege log and indicated that any identifying information of nonparty minors or information which would otherwise fall within Welfare and Institutions Code section 827 should be appropriately redacted or handled through appropriate procedures to preserve confidentiality, including an in-camera review.

Also, on May 15, 2026, Plaintiff issued a business records subpoena to the Orange County Sheriff's Department seeking identical records limited only to the criminal investigation and related prosecution of Hasselbarth between January 1, 2005, and December 31, 2008, concerning sexual conduct involving minors at the Los Pinos Conservation Camp. The subpoena also excluded privileged materials and invited identifying information regarding minors to be subject to redactions and for records falling within section 827 to be handled through the appropriate procedure.

The County seeks for orders to quash the subpoena on essentially the same grounds on which it moved to quash for the first time. It argues that the subpoenas seek post-abuse documents which are not relevant to the alleged sexual abuse of Plaintiff in 2001 through 2022 or to prove the County's pre-incident knowledge of Hasselbarth's propensity in support of the claim for negligent hiring, supervision, or retention. The County also argues that the documents relating to sexual abuse of a minor are within the exclusive jurisdiction of the juvenile court under Welfare and Institutions Code sections 300 and 827 and cannot be disclosed without an order of the juvenile court. The County also argues that the

subpoenas seek information protected by Pitchess and Evidence Code section 1043 relating to peace officer privacy. The County also argues that the information Plaintiff is seeking is also covered by third-party privacy rights.

In summary, the County's objections are meritless. The motions to quash should be denied for reason that the categories of documents requested by the subpoenas are reasonably particularized and may be relevant or reasonably calculated to lead to admissible evidence. However, any production of records under the subpoenas should be subject to a first-look review by the County.

The procedures available to obtain documents from a nonparty are the "records only" and "records and testimony" deposition subpoenas. (*Monarch Healthcare v. Superior Court (Cassidenti)* (2000) 78 Cal.App.4th 1282, 1287 (Monarch).) "A deposition subpoena which seeks only business records simply allows a party to obtain these records without the formality of requiring the testimony of the custodian. [Citation.]" (*Naswer v. Lakeridge Athletic Club* (2014) 227 Cal.App.4th 571, 577, internal quotation mark omitted.) The statute does not define the term "business record," but, in the context of the Evidence Code, "business" includes "every kind of business, *governmental activity*, profession, occupation, calling, or operation of institutions, whether carried on for profit or not," and "record" includes "every kind of record maintained by such a business," and that "a business records subpoena may be used to obtain 'all or any part of the records of the business' upon which the subpoena is served." (*Urban Pacific Corp. v. Superior Court* (1997) 59 Cal.App.4th 688, 692, citing Evid. Code, §§1560, subs. (a) & (b), 1270, italics added.)

A deposition subpoena that commands only the production of business records for copying must designate the business records to be produced either by: "Specifically describing each individual item" or "reasonably particularizing each category." (Code Civ. Proc., §2020.410(a).) "Generalized demand, insupportable by evidence showing at least the potential evidentiary value of the information sought, are not permitted." (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 218 [motion to compel production of business record from a nonparty].) Although the section of the Discovery Act (former section 2020 of the Code of Civil Procedure) contains no specific requirement for a party seeking production of document from a nonparty to "set forth specific facts showing good cause justifying the discovery sought," as it is required for compelling document production from a party (Code Civ. Proc., §2031.310), the court in *Calcor Space* noted that "since it is unlikely the Legislature intended to place greater burdens on a nonparty than a party to the litigation, we read a similar requirement into [Section 2020]." (*Id.* at 224.)

Either the nonparty witness who has been subpoenaed, or any party to the action, may challenge the deposition subpoena. A deposition subpoena may be attacked for: defects in form or content of the subpoena, such as inadequate description of requested documents in subpoena; records sought not within permissible scope of discovery (i.e., privileged, privacy or attorney work product; or not "relevant to the subject matter"; unjustly burdensome or oppressive demands; "consumer's" right of privacy in "personal records"). (Code Civ. Proc., §1985.8(e).)

Here, both motions are denied for reason the categories of records sought by the subpoenas are reasonably particularized and good cause has been shown. The motions are nearly identical, and the substance of the County's arguments presented therein will be addressed together.

The County makes numerous meritless arguments based on inapplicable statutory provisions. First, the County argues at length that the records demanded by Plaintiffs come within the purview of the juvenile court under Welfare and Institutions Code section 827, which requires prior order from the juvenile court before disclosure by the public agency served with the subpoena. However, that section governs records that are considered “juvenile case file,” which is specifically defined by statute to mean “a petition filed in a juvenile court proceeding, reports of the probation officer, and all other records, including any writing as defined in Section 250 of the Evidence Code, or electronically stored information relating to the minor, that is filed in that case or made available to the probation officer in making the probation officer’s report, or to the judge, referee, or other hearing officer, and thereafter retained by the probation officer, judge, referee, or other hearing officer.” (Welf. & Instit. Code, § 827(e).) The definition does not mention any records maintained by the District Attorney’s office or the sheriff’s department. Nor do the records sought by Plaintiff pertain to any case filed in the juvenile court pertaining to a minor. The County, further relying on case law and statutory provisions which have no application to this matter, argues that there is no requirement to file a dependency petition as a prerequisite to the exercise of juvenile court jurisdiction, and, on that basis, argues that the records subpoenaed by Plaintiff also fall within the juvenile court’s jurisdiction because the criminal investigation into Hasselbarth necessarily includes information regarding minors who were victims of sexual assault. (See *In re Elijah S.* (2005) 125 Cal.App.4th 1532, 1544.) However, the jurisdictional question involved in the case cited by the County was specifically raised in relation to a provision under section 827 regarding the mandatory release of juvenile case files pertaining to a deceased child (Welf. & Instit. Code, § 827(a)(2)) and has no application in this case.

Nor does Welfare and Institution Code section 300 support the County’s position that the subpoena seeks records which prohibited from disclosure unless authorized by the juvenile court because minors who suffered sexual abuse are under the jurisdiction of the juvenile court. Section 300 broadly provides that “[a]ny child’ who has suffered specified physical or emotional neglect or abuse – or who is at ‘substantial risk’ of suffering such neglect or abuse in the future – ‘is within the jurisdiction of the juvenile court which may adjudge that person to be a dependent child of the court.’ (See *In re Elijah S.*, *supra*, 125 Cal.App.4th at 1544.) However, as noted in *In re Elijah*, a case the County relies on, “the specific description of children ‘within the jurisdiction of the juvenile court’ under Section 300 include any child who has suffered, or is at substantial risk of suffering, serious physical harm, illness, emotional damage, sexual abuse, severe physical abuse, or lack of provision for support, inflicted by or at the responsibility of that child’s parent or guardian.” (*Ibid.*) The criminal prosecution or investigative records sought by the civil action subpoenas in this case do not relate to any dependency issues involving the minor’s parent or guardian.

Moreover, the County argues that the subpoenaed records encompass information regarding misconducts committed by Hasselbarth during her capacity as a peace officer and are therefore subject to the procedures under Evidence Code section 1043, which require Plaintiff to bring a *Pitchess* motion² before requesting the disclosure of records. This argument fails in that the *Pitchess* procedure applies when seeking disclosure of

² This procedure known as the “Pitchess” motion derives its name from *Pitchess v. Superior Court* (1974) 11 Cal.3d 531.

records relating to investigation of a peace officer's conduct that is contained within the officer's personnel files with the employer. Here, there is no indication that either the District Attorney's Office or the Sheriff's Department employed Hasselbarth during the relevant periods and that any records sought by Plaintiff are part of any personnel files maintained by either agency. In fact, the inapplicability of the *Pitchess* procedures in this case is clear in that, the Penal code provides: "This section does not apply to investigations or proceedings concerning the conduct of peace officer or custodial officers, or an agency or department that employs those officers, conducted by a district attorney's office...." (Pen. Code, § 832.7(a).)

Furthermore, the categories of records sought by the subpoenas are "reasonably" particularized from the standpoint of the party on whom the demand is made. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 222.) The County argues that any post-abuse documents are irrelevant to the alleged sexual abuse of Plaintiff or any pre-incident knowledge the County had regarding Hasselbarth's propensity or information that would have alerted the County regarding the threat she imposed on minors. Indeed, the County's knowledge of Hasselbarth's sexual assault of minors prior to hiring and while Hasselbarth's employment with the County is what is material to proving the cause of action for negligent hiring, supervision, and retention. (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054 [Negligent hiring occurs where an employer knows or should know that an employee creates a risk of a particular harm, and that harm materializes].) However, as the court noted in *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 245 Cal.App.4th 566, such post-abuse information is not entirely outside the permissible scope of discovery but may shed light on the employer's actions or inactions towards the perpetrator and that subsequent conduct was not merely a mistake or an accident. (*Id.* at 593.) As the court noted, the standard for discovery is whether the information is reasonably calculated to lead to admissible evidence. (*Id.* at 594.) The County argues that *Lopez, supra*, is distinguishable because that case involved discovery sought from the alleged employer who hired the perpetrator rather than a third party; however, that distinction does not show that records sought from third parties should be shielded from discovery where good cause has been shown. Here, as Plaintiff asserts, the post-abuse information on the investigation and criminal prosecution of Hasselbarth may reveal information showing a pattern of abuse which may have continued from the time of the alleged sexual abuse against Plaintiff or may reveal information as to when, if at all, the County became aware of the fact of the abuse.

For the foregoing reason, the motions should be denied. However, to assuage potential concerns over third-party privacy and confidentiality, including the minor victims, production should be subject to a joint stipulation containing a "first look" provision allowing the County's counsel to review and redact information which may disclose the identity of minor victims and to prepare a privilege log describing the redactions. (Code Civ. Proc., § 1987.1(a) [court "may make an order ... directing compliance with [the subpoena] upon those terms and conditions as the court may declare...."].) The parties should meet and confer on entering a joint stipulation before Defendant may issue and serve amended subpoenas.

3.

CASE #	CASE NAME	HEARING NAME
CVME2508525	DOE A.G. VS COUNTY OF ORANGE	MOTION TO QUASH PLAINTIFF'S DOCUMENT SUBPOENA TO THE CUSTODIAN OF RECORDS FOR THE DISTRICT ATTORNEY'S OFFICE

Tentative Ruling: See above.

4.

CASE #	CASE NAME	HEARING NAME
CVSW2108099	PELAYO VS STIRLING	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling: DENY

Plaintiff Letitia Pelayo acquired ownership of the residential property located at 45251 La Cruz Drive, Temecula, CA in March 2021. The property is in the De Luz Ranchos Association. The Association has governing documents including CC&Rs which ban nuisances and Rules & Regulations that expressly ban short-term rentals (less than 30 days). When Pelayo moved into the residence, the closest home to her property was owned by Heather Stirling and is located at 44240 La Cruz Drive, Temecula. After this action was filed Stirling transferred the property to Santos Ranch Holdings LLC.

Plaintiff alleges that Defendants Dawn & Luciano Santos have been operating a short-term rental out of the Stirling property that Plaintiff characterizes as a "party house." Pelayo complained directly to Defendant Dawn Santos and then to the Association, but this did not abate the nuisance activity. Pelayo then hired counsel who sent a cease-and-desist letter and a Request for Resolution under Civil Code §§5930, 5935, and 5940, which is required before commencing an action concerning a common interest development. Receiving no response, Pelayo filed the instant lawsuit on September 22, 2021.

On December 9, 2021, Defendants Dawn Santos and Luc Santos filed a cross-complaint alleging various causes of action, including various citations to the Penal Code. The cross-complaint alleges claims of stalking, extortion, vexatious litigant, and filing false and misleading claims. The cross-complaint seeks an award of damages totaling \$1,460,000 and to have Pelayo incarcerated and deported.

On February 2, 2022, Pelayo filed a Special Motion to Strike the cross-complaint under CCP §425.16. On March 8, 2022, the anti-SLAPP motion was granted as to the entirety of the cross-complaint on the basis that the gravamen of the claims made therein arise from Pelayo's constitutionally protected activity.

Defendants and Cross-Complainants filed a First Amended Cross-Complaint (FACC) on March 12, 2024, alleging twelve (12) causes of action.

Cross-Defendant Dawn Santos brings the instant motion for judgment on the pleadings against Cross-Complainant Leticia Pelayo "because the Cross-Complaint fails to state sufficient facts to constitute a cause of action as a matter of law." (Motion p.4:6-7.) Santos

contends the entire dispute underlying this case has “been completely extinguished” because Cross-Complainant previously executed a binding and valid settlement agreement with the HOA. Santos asserts the global settlement agreement included a full release of claims and Civil Code §1542 waiver. Santos argues the claims in the Cross-Complaint are mooted by the section 1542 waiver. The motion purports to include the section 1542 waiver as Exhibit A, but no document is attached. Santos filed a request for judicial notice asking the court to take judicial notice of the section 1542 waiver.

Plaintiff Pelayo opposes the motion. Pelayo explains at a Mandatory Settlement Conference in 2022, parties De Luz Ranchos HOA and its management company, Ralston Management Company, entered into a confidential settlement agreement with Santos to settle her claims against them. Pelayo was not a party to that settlement agreement. Pelayo contends this settlement agreement is the basis for Santos’ motion.

The very basis of the motion is improper. Cross-Complainant Santos moves for judgment on the pleadings of *her own pleading* – the Cross-Complaint. If Santos wishes to dismiss her Cross-Complaint, she can do so. A motion for judgment on the pleadings is unnecessary and improper.

It is possible Santos has simply confused the pleadings at issue. However, even if Santos is challenging Pelayo’s pleading, there is no basis for the motion. Santos has not demonstrated that the allegations in any pleading are insufficient to state a cause of action. Santos’ motion relies on a settlement agreement between Santos, De Luz Rancho Association, and Ralston Management. First, Pelayo is not a party to that agreement, so it has no bearing on Pelayo’s claims. Second, the copy of the settlement agreement Santos provided only includes signatures from Santos and Santos Ranch. It is not clear that this is, in fact, a valid and binding agreement between any parties based on the record before the court.

5.

CASE #	CASE NAME	HEARING NAME
CVSW2308832	HAIRE VS BARRAZA	DEMURRER ON CVME2406197

Tentative Ruling: OVERRULE the general demurrer to the 1st and 2nd causes of action. (C.C.P., § 430.10(e).)

SUSTAIN the misjoinder demurrer without further leave to amend. (C.C.P., § 430.10(d).

Plaintiffs allege that on 12/14/22, Plaintiff Andrew Lee Haire was driving westbound on Bryant Street, with Plaintiffs Emily Haire and Samuel Haire, when he entered the intersection of Palomar Street and he was struck by a vehicle driven by non-party Miguel Barraza. Defendants are the owners of properties located on Bryant Street, and Plaintiffs allege that the negligently maintained Bryan Street with overgrown vegetation such that it constituted a dangerous condition as it obstructed the view of Barraza. Plaintiffs filed this action on 12/13/24 and filed the operative Second Amended Complaint (SAC) on 12/29/25. The SAC asserts: (1) negligence; (2) negligence; and (3) loss of consortium.

Defendants Laurie Haven as Trustee of the Amended and Restated Judyth Marshel Trust and Amended and Restated Judyth Marshel Trust now demur to the 1st and 3rd cause so faction on the ground each fails to state facts sufficiently to constitute a claim. (C.C.P., §

430.10(e).) Plaintiffs allege that “Defendants TRUST” are owners of land located at 32476 Bryant Street, but Plaintiffs have failed to allege any specific condition at that property attributable to them that caused this incident. The separately named Trust also demurs on the ground there is a defect of parties since Trust is not a legal entity that can be sued any claim must be asserted, if at all, against the trustee in a representative capacity. (C.C.P., § 430.10(d); see also *Powers v. Ashton* (1975) 45 Cal.App.3d 783, 787.)

In opposition, Plaintiffs argue there was no adequate meet and confer as required. They state they did not file any timely opposition to the demurrer when set for the original hearing date because Defendant did not e-serve Plaintiffs’ paralegal and the only service went to counsel’s spam box. On the merits, they argue the complaint adequately alleges Defendants collectively failed to maintain adequate visibility along with multiple adjoining property owners and they are not required to allege a precise apportionment of fault at the pleading stage.

Code of Civil Procedure section 430.41 requires a meet and confer process via phone, videoconferencing, or in person at least 5 days before filing a demurrer. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at § 430.41(a)(1).) The moving party must file a declaration stating how the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at § 430.41(a)(3).) Here, the meet and confer was “initiated” the same day the demurrer was filed. (Shouhed Decl., ¶ 4.) The court continued the initial hearing from 4/7/26 and ordered the parties to engage in a code-compliant meet and confer. It does not appear any efforts were made to comply with the Court’s order to meet and confer.

Here, Plaintiffs have adequately alleged the 1st cause of action for negligence. (SAC, ¶¶ 14-27.) The SAC alleges the property owner defendants, of which Trust is included, collectively failed to maintain safe roadway conditions, failed to comply with roadway design standards, failed to maintain adequate visibility, failed to provide appropriate traffic control devices, and failed to warn motorists of dangerous conditions. Defendants cite to no relevant authority requiring more specificity of a negligence claim.

Defendants only demurrer to the 3rd cause of action for loss of consortium on the ground negligence is not adequately alleged. As discussed above, Plaintiffs have sufficiently stated their negligence cause of action.

Plaintiffs’ opposition is notably silent as to the misjoinder issue. A trust estate is not a legal entity; it is simply a collection of assets and liabilities. As such, it has no capacity to sue, be sued or defend an action. Any litigation must be maintained by, or against, the executor, administrator or trustee of the estate. (*Galdjie v. Darwish* (2003) 113 Cal.App.4th 1331, 1344.)

Here, while the SAC properly names Defendants Laurie Haven as Trustee of the Amended and Restated Judyth Marshel Trust as a defendant, it also separately names the “Amended and Restated Judyth Marshel Trust” as a defendant. A trust is not a proper defendant. Accordingly, the demurrer is sustained without leave to amend.